

these Defendants is dismissed with prejudice in its entirety.

2. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
HEARING IN RE: JOINDER TO MOTION FOR TERMINATING SANCTIONS AGAINST PLAINTIFF
CATALINA MARTINEZ
FILED BY: BALQUIST, JOHN
TENTATIVE RULING:

Defendants John Balquist, as Trustee of Knute N. Hylen and Ellen Bricker Hylen Exemption Trust Under 1987 Amended and Restated Declaration of Trust, Charles William Mahler, Individually and as Trustee of the Charles William Mahler and Gloria May Mahler Common Revocable Living Trust, joined in the unopposed motion of Defendants Bethel Island Estates MHC, LLC and Monte Christo Communities, LLC for terminating sanctions against Plaintiff Catalina Martinez is granted.

Plaintiff Catalina Martinez's Complaint against Defendants John Balquist, as Trustee of Knute N. Hylen and Ellen Bricker Hylen Exemption Trust Under 1987 Amended and Restated Declaration of Trust, Charles William Mahler, Individually and as Trustee of the Charles William Mahler and Gloria May Mahler Common Revocable Living Trust is dismissed with prejudice in its entirety.

3. 9:00 AM CASE NUMBER: C24-00586
CASE NAME: GURPREET SINGH VS. JASPAL SINGH
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: SINGH, JASPAL
TENTATIVE RULING:

Before the Court is Defendants Jaspal Singh and Manpreet Singh's Motion for Summary Judgment ("MSJ"). The Complaint alleges two causes of action: (1) breach of contract, and (2) common counts.

Plaintiff's opposition was due on or before April 10, 2026. As of the drafting of this Tentative Ruling, which is well beyond that date, no opposition has been filed. Even though the instant MSJ is unopposed, the Court cannot grant summary judgment unless Defendant meets its initial burden. (See *Johnson v.*

Superior Court (2006) 143 Cal.App.4th 297, 305.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

For the following reasons, Defendants' Motion for Summary Judgment is **denied**.

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; *if* he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment "must make a prima facie showing, i.e., 'he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, *he* would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact.'" (*Ibid.* quoting *Aguilar*, supra, 174 Cal.App.4th at 851.)

Summary Judgment versus Summary Adjudication

Defendants' motion is styled as a "Motion for Summary Judgment." (emphasis added.) The notice of motion indicates that the Defendants "move the Court for summary judgment" on the ground that Plaintiff's "claim is barred by the statute of limitations set forth in CCP 337(a) (*the four year written-contract statute of*

limitations.)” (Notice at 2:2-5.)

Section 437c(f) pertains to motions for summary adjudication which “may be made by itself or as an alternative to a motion for summary judgment....” (Code Civ. Proc. 437c (f)(2).) Here, as made clear above, Defendants only seek summary judgment. There is no reference or request for a motion for summary adjudication. “[A] court may not properly grant summary adjudication of issues when the notice of motion was only for summary judgment.” (*Jimenez v. Protective Life Ins. Co.* (1992) 8 Cal.App.4th 528, 532 citing *Gonzalez v. Superior Court* (1987) 189 Cal.App.3d 1542.)

“It is elemental that a notice of motion must state in writing the ‘grounds upon which it will be made.’” (*Gonzalez*, 189 Cal.App.3d at 1545 citations omitted.) “Only the grounds specified in the notice of motion may be considered by the trial court.” (*Ibid.*) “This rule has been held to be especially true in the case of motions for summary adjudication of issues.” (*Ibid.*)

As Defendants’ motion is limited to one for summary judgment, it can only be granted if Defendants show that “the action has no merit,” i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 [“Summary judgment is proper only if it disposes of the entire lawsuit.”])

Analysis

Breach of Contract

Defendants’ sole basis for alleging that Plaintiff’s breach of contract fails is that it is untimely.

Plaintiff and Defendant Jaspal Singh entered into a written Business Purchase Agreement (“BPA”) on November 9, 2019. (UMF 1.) Under the terms of the BPA, Plaintiff sold his business, Cigar Loft LLC, to Jaspal Singh. (UMF 1.) The total purchase price for the Cigar Loft was \$215,000. (UMF 2.) The first \$100,000 was to be paid upon signing of the BPA. (UMF 2.) The remaining \$115,000 was to be paid upon transfer of the lease for the property where Cigar Loft was located. (*Ibid.*)

On February 27, 2020, Plaintiff’s attorney sent a letter to Jaspal (sic) Singh that the parties agreed that a partial payment of \$25,000 would be paid by Jaspal

(sic) Singh on February 25, 2020, but such payment had not been paid. (UMF 5.) On March 2, 2020, Plaintiff's attorney re-sent the same letter but with a correction to indicate it was sent to Jaspal Singh (correct spelling of first name.) (UMF 7.)

Plaintiff ultimately filed his Complaint in this matter on March 5, 2024. (UMF 8.)

"A cause of action for breach of a written contract is subject to a four-year statute of limitations." (*Eloquence Corp. v. Home Consignment Center* (2020) 49 Cal.App.5th 655, 661.) "As a general rule, the statute of limitations begins to run 'when a controversy is ripe – that is, when all of the elements of a cause of action have occurred and a suit may be maintained.'" (*Ibid.* quoting *Armstrong Petroleum Corp. v. Tri-Valley Oil & Gas Co.* (2004) 116 Cal.App.4th 1375, 1388.)

"To prevail on a breach of contract cause of action, [plaintiff] must establish (1) a contract; (2) its performance or excuse for nonperformance; (3) breach; and (4) damages." (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.) "Any nonperformance of a duty under a contract when performance is due is a breach. This includes defective performance as well as an absence of performance; defective performance can be inadvertent as well as intentional, and the duty can be imposed by the court as well as by a promise stated in the agreement." (*Linden Partners v. Wilshire Linden Assoc.* (1998) 62 Cal.App.4th 508, 531-32.)

Here, Defendant Jaspal Singh asserts that statute of limitations on the breach of contract cause of action began to run on February 26, 2020 – that date Jaspal allegedly breached the contract by failing to make the \$25,000 payment. As such, Defendant argues that "Plaintiff had four years from that date – until February 26, 2024 – to file suit." (MSJ at 6:2.) Plaintiff did not file the Complaint until March 5, 2024 – eight days too late.

While the above analysis might be correct for most periods of time, the COVID pandemic of 2020 changes the analysis for how the statute of limitations is calculated.

"In response to the COVID-19 pandemic, the Judicial Council adopted a series of emergency rules effective April 6, 2020. As initially adopted, Emergency rule 9 tolled 'the statute of limitations [for] civil causes of action from April 6, 2020, ... until 90 days after the Governor declares that the state of emergency related to the COVID-19 pandemic is lifted.'" (*People v. Financial Casualty & Surety, Inc.*

(2021) 73 Cal.App.5th 33, 38.) Emergency rule 9 was later amended to read, in pertinent part:

“Notwithstanding any other law, the statute of limitations and repose for civil causes of action that exceed 180 days are tolled from April 6, 2020, until October 1, 2020.” (COVID-19 Emergency Rule 9(a).)

In other words, Emergency Rule 9(a) “tolled unexpired limitations periods from April 6, 2020, until October 1, 2020.” (*Ross v. Seyfarth Shaw LLP* (2023) 96 Cal.App.5th 722, 743.)

“A tolling provision suspends the running of a limitations period.” (*Shalabi v. City of Fontana* (2021) 11 Cal.5th 842, 845.) “In other words, ‘the limitations period stops running during the tolling event, and begins to run again only when the tolling event has concluded. As a consequence, the tolled interval, no matter when it took place, is tacked onto the end of the limitations period, thus extending the deadline for suit by the entire length of time during which the tolling event previously occurred.’” (*Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 403 quoting *Lantzy v. Centex Homes* (2003) 31 Cal.4th 363, 370-71.)

The four-year statute of limitations for breach of contract “exceeds 180 days.” As such, it falls within the purview of Emergency Rule 9. Thus, when counting the time relevant for calculating the statute of limitations, one will not include the 178 days from April 6 to October 1, 2020.

The alleged breach of contract in this matter occurred on February 26, 2020 – before Emergency Rule 9 went into effect. Thus, the entire 178 days is added onto the four-years such that the applicable statute of limitations is approximately 4 ½ years. Accordingly, even under Defendant’s theory as to when the breach occurred, Plaintiff had until August 22, 2024 (February 26, 2020 + 4 years + 178 days), to initiate his breach of contract claims against Defendant Jaspal Singh. As noted above, the Complaint was filed on March 5, 2024 – well before the expiration of the statute of limitations.

Based on the above, Defendants’ MSJ directed toward the breach of contract cause of action is **denied**.

Other Causes of Action

As Defendants' motion is limited to one for summary judgment, it can only be granted if Defendants show that "the action has no merit," i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 ["Summary judgment is proper only if it disposes of the entire lawsuit."])

As Defendants have failed to meet their burden regarding the breach of contract cause of action, the Court need not analyze the common counts cause of action. Because there is a single viable cause of action, the motion for summary judgment must be denied in its entirety.

Conclusion

Defendants' Motion for Summary Judgment is **denied**.

4. 9:00 AM CASE NUMBER: C24-01590

CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO

*HEARING ON MOTION IN RE: PROTECTIVE ORDER

FILED BY: JURADO, ANTHONY

TENTATIVE RULING:

Notice to withdraw the motion was filed. Hearing vacated.

5. 9:00 AM CASE NUMBER: C24-01666

CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER

HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT

FILED BY: SAW, AMAN, MD

TENTATIVE RULING:

Before the Court is Defendants Aman Saw, M.D., John Muir Health, John Muir Cardiovascular Medical Group, Inc.'s (collectively "JMH Defendants") demurrer. The demurrer relates to Plaintiff Niraj Gandhi's ("Plaintiff" or "Gandhi") Third Amended Complaint for (1) Medical Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress.

JMH Defendants demurrer to Plaintiff's Third Amended Complaint in its entirety on the grounds that the Doe amendment adding them does not relate back to